



POLICE DEPARTMENT

August 11, 2025

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Sheldon Elliott :
Tax Registry No. 958550 :
23 Precinct :

Case No.
C-032155

Police Officer Matthew Crudele :
Tax Registry No. 968351 :
23 Precinct :

Case No.
C-032156

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB: Amanda Rodriguez & Roberto Tavel, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondents: Michael Martinez, Esq.
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To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-032155

1. Police Officer Sheldon Elliott, on or about June 17, 2023, at approximately 0130 hours, while assigned to the 23 Precinct and on duty, in the vicinity of § 87(2)(b) in Manhattan, New York County, abused his authority as a member of the New York City Police Department, in that PO Elliot took law enforcement action in stopping § 87(2)(b) based upon § 87(2)(b) actual or perceived race.

AG 304-17, Page 1, Paragraph 3

PROHIBITED CONDUCT

Disciplinary Case No. C-031256

1. Police Officer Matthew Crudele, on or about June 17, 2023, at approximately 0130 hours, while assigned to the 23 Precinct and on duty, in the vicinity of § 87(2)(b) in Manhattan, New York County, abused his authority as a member of the New York City Police Department, in that PO Crudele took law enforcement action in stopping § 87(2)(b) based upon § 87(2)(b) actual or perceived race.

AG 304-17, Page 1, Paragraph 3

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on July 9, 2025. Respondents, through their counsel, entered pleas of Not Guilty to the charged misconduct. The Civilian Complainant Review Board (hereinafter the “CCRB”) called § 87(2)(b) and Dr. Alix Winter as witnesses, and introduced into evidence Body-Worn Camera footage from Respondents Crudele and Elliott, as well as a third officer, Officer Maroldo (CCRB Exs. 1, 2, and 3, respectively). Respondents each testified on their own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner’s review. Having evaluated all of the evidence in this matter, I find each Respondent Not Guilty.

ANALYSIS

Evidence

In the early morning hours of June 17, 2023, Respondents, who were assigned to the 23 Precinct's Neighborhood Safety Team ("NST"), responded to a ShotSpotter alert in the vicinity of § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in New York County. Moments later, they stopped § 87(2)(b) who is Black, in front of § 87(2)(b). There is no dispute that the stop occurred. At issue is whether the CCRB has met its burden of proving that the stop was motivated, even in part, by § 87(2)(b) race.

The incident was captured by the Body-Worn Cameras ("BWC") of the officers, and there was testimony about what transpired from § 87(2)(b) and each Respondent. Although, as will be discussed below, the motivation of Respondents is a point of contention, there was essential agreement on most of the details of what occurred during the encounter. Both § 87(2)(b) and Respondents were detailed and logical in their testimony, and their accounts were essentially consistent with the BWC footage.

§ 87(2)(b) who has been employed for eight-and-one-half years with § 87(2)(b) testified that after parking his car, he was walking on § 87(2)(b) toward § 87(2)(b) on his way home. He passed by Respondents, who he heard speaking with two individuals in front of a deli. A moment later, as he was walking, he glanced back and noticed that Respondents' unmarked police car was now driving close to him. § 87(2)(b) made a left onto § 87(2)(b) and walked past his residence, intending to stop at a store. He crossed § 87(2)(b) but saw that the store was closed, so he turned around and started walking back home. According to § 87(2)(b) there was no traffic as he crossed

§ 87(2)(b) at that time (0130 hours), and he denied that he had jaywalked in either direction.
(Tr. 24-27, 31-35)

Just as he was reaching his home on § 87(2)(b) § 87(2)(b) was stopped by Respondents. § 87(2)(b) testified that he asked Respondent Elliott why he was being stopped, and the officer told him it was for jaywalking. Respondent Elliot requested his identification, and § 87(2)(b) eventually told the officer his name, date of birth, and address. As Respondent Elliott was using his phone to check § 87(2)(b) name for warrants, § 87(2)(b) repeatedly questioned the officers as to the real reason for the stop, asking whether they had something better to do than stopping him for jaywalking. After running § 87(2)(b) name on his phone, Respondent Elliot stated that no photograph appeared, and told § 87(2)(b) he needed a picture ID, which he did not initially provide. (Tr. 26-29, 35-39)

According to § 87(2)(b) he was detained at the scene for approximately 20 minutes, since Respondents did not have a summons form to issue to him. Eventually another unit arrived with the necessary form. § 87(2)(b) showed the responding sergeant his driver's license, and was issued the summons. § 87(2)(b) testified that at no point during the stop did Respondents ask him anything about a gunshot on § 87(2)(b) (Tr. 29-30, 39-40)

Respondents both testified that they, and a third officer, were in uniform in an unmarked police vehicle at the time of the incident, which occurred at approximately 0130 hours. The officers, who were assigned to the NST, quickly responded to the ShotSpotter alert, which is a high priority job. Upon their arrival at § 87(2)(b) the only individuals Respondents saw were two light-skinned Hispanic males sitting in front of a deli. Respondents activated their BWCs, approached the individuals, and asked if they had seen or heard any gunshots. The individuals confirmed that they had been sitting outside for awhile and stated that they did not see or hear

anything. Each Respondent acknowledged that they did not investigate the possibility that the two individuals possessed alcohol in open containers in public, even though they both had brown paper bags that typically are used to conceal such containers. The officers also testified that they did not notice whether there were other people inside the deli whom they could have questioned. Instead, Respondents turned their attention to § 87(2)(b) who walked past them on § 87(2)(b) as they were speaking with the two individuals. (Tr. 91-95, 106-12, 117-20, 131-32, 138-41, 158-61, 164-68)

When § 87(2)(b) walked past them he did not look in the officers' direction nor did he make eye contact. Respondent Elliott testified that in his experience, which included two-and-one-half years with the Anti-Crime Unit before being assigned to the NST, when someone avoids eye contact in this manner, and only glances back after they are some distance away to see if they are being watched, it may signal that they are involved in some form of criminal activity. After making this observation, Respondent Elliot gestured with his hand to Respondent Crudele that they should return to their vehicle, which they did. Respondent Elliott, who is Black, stated to Respondent Crudele that if § 87(2)(b) jaywalked, they would stop him. Both Respondents testified that they were looking for a lawful basis to stop and interact with § 87(2)(b) who was the only other individual they had observed in the vicinity of the ShotSpotter alert. (Tr. 96-97, 103, 112-17, 128-29, 141-44, 149, 162-63, 167-68, 174-77)

From their vehicle on the corner of § 87(2)(b) and § 87(2)(b) the officers observed § 87(2)(b) walking south toward § 87(2)(b). Respondents each testified that they witnessed § 87(2)(b) walk across § 87(2)(b) going south, and that he then reversed direction and crossed § 87(2)(b) again heading back north. Although he was in the crosswalk when he crossed the street, he did so against the red hand signal in the pedestrian box at the crosswalk.

The officers promptly exited their vehicle and stopped § 87(2)(b) in front of § 87(2)(b). Respondent Elliott addressed § 87(2)(b) asking him to provide identification.

When § 87(2)(b) questioned why he was being stopped, Respondents informed him it was for jaywalking. (Tr. 98-99, 120-22, 144-45, 169-73)

§ 87(2)(b) told Respondent Elliott his name, date of birth, and address, and the officer ran a check of that information on his phone. The phone check did produce a match to the information provided by § 87(2)(b) but it did not include a photograph, and so Respondent Elliott asked § 87(2)(b) for a photo ID in order to verify his information; § 87(2)(b) refused to hand over such identification. Respondents testified that since they did not have any summons forms in their possession, they had to wait for other members of their team to arrive with the appropriate forms. When the other unit arrived, § 87(2)(b) showed his photo ID to the responding sergeant, and Respondent Elliott prepared a written summons which he issued to § 87(2)(b). Prior to this date, Respondent Crudele had never issued a summons for jaywalking, whereas Respondent Elliott stated he issued such summonses in the past, about once a month. Respondents testified that neither of them asked § 87(2)(b) anything directly about the gunshots. However, they noted that during their 20-minute interaction, they had an opportunity to speak with § 87(2)(b) and observe him, and according to their experience there was nothing that suggested he was involved in the ShotSpotter alert. They also each insisted that the stop had absolutely nothing to do with § 87(2)(b) race. (Tr. 99-103, 123-24, 127, 145-49, 177-86)

The BWC footage is essentially consistent with the narratives provided by § 87(2)(b) and Respondents. In the footage, Respondents ask the two individuals, who appear to be male Hispanics, whether they had heard any gunshots. They answer that they had been sitting there

awhile, and had not seen or heard anything. As Respondents are speaking with the individuals,

§ 87(2)(b) dressed in a blue hoodie and carrying a fanny pack, walks past them on § 87(2)(b) in the direction of § 87(2)(b) (CCRB Ex. 1 at 1:05-1:26; Ex. 2 at 1:03-1:28)

After observing § 87(2)(b) for several seconds as he continues walking down the street, Respondent Elliott signals with his hand to Respondent Crudele that they should wrap up their conversation with the two individuals and return to their vehicle. (CCRB Ex. 1 at 1:28-1:35) The BWC footage captures Respondent Elliott saying to Respondent Crudele, "If he gives us that J..." and Respondent Crudele responding, "Yeah." (CCRB Ex. 2 at 1:28-1:41) The officers drive slowly to the corner, and appear to be looking left down § 87(2)(b) in the direction that § 87(2)(b) is walking. Respondent Crudele can be heard saying that § 87(2)(b) just doubled back, and Respondent Elliott states he crossed against the red. The footage only captures the discussion between Respondents; there is no video of § 87(2)(b) as he crosses the street. (CCRB Ex. 1 at 3:22) The officers turn onto § 87(2)(b) and quickly exit their vehicle, with the intention of stopping § 87(2)(b) for jaywalking.

The BWC footage then shows Respondents approach § 87(2)(b) and Respondent Elliott requests his identification. § 87(2)(b) asks why he is being stopped, and Respondent Elliott tells him it is for jaywalking. After repeated requests, § 87(2)(b) verbally provides his name and date of birth to the officers. As Respondent Elliott is using his phone to verify the information provided, § 87(2)(b) persistently questions the officers as to the real reason they are stopping him. § 87(2)(b) appears to be genuinely incredulous that he is being stopped for jaywalking at that hour. He states that he works for the City, he knows what he is talking about. § 87(2)(b) also explains that he had just parked his car, and was walking home. He was intending to first stop at a store across § 87(2)(b) but after seeing that the store was closed had

doubled back toward his home. Respondent Elliott pulls up § 87(2)(b) information on his phone, but there is no photograph, so the officer asks § 87(2)(b) for a photo ID, which he initially does not provide. (CCRB Ex. 1 at 3:48-8:29; Ex. 2 at 3:47-9:12)

Approximately 12 minutes after the stop, other members of the NST arrive. One of them, Officer Maroldo, helps Respondent Elliott clarify what type of summons he needs, then hands him one to complete. (CCRB Ex. 3 at 4:21-5:50) Meanwhile, the responding sergeant speaks with § 87(2)(b) and persuades him to show him his photo ID. Respondent Elliot hands § 87(2)(b) the summons, and the encounter ends. (CCRB Ex. 1 at 20:26-23:03; Ex. 2 at 26:12-26:31)

Dr. Alix Winter, the Chief Data Scientist in the Racial Profiling and Bias-Based Police Investigations Unit of the CCRB, testified as an expert in data analysis. She explained how in certain cases involving police encounters, she requests data from the NYPD related to the type of encounter in question, for the one-year period preceding the incident. She also reviews publicly available NYPD data, such as that which is provided on the NYC Open Data website. Dr. Winter reviews the data and determines whether it supports a conclusion that an officer engaged in racially-based law enforcement activity. She testified that there are times where she is unable to draw any conclusions from the data, such as when she is dealing with an insufficient sample size. (Tr. 48-50, 57-58, 73-74)

In this matter, Dr. Winter reviewed the stop report and summons data provided by the NYPD for the one year preceding this incident, which occurred on June 17, 2023. She also reviewed the summons data she obtained from the NYC Open Data website for the two years before this encounter. At trial, Dr. Winter testified regarding this data:

From her review of the NYC Open Data:

1. Dr. Winter noted that in the year prior to the formation of the NST on March 16, 2022, there were a total of 332 criminal summonses issued in the 23 Precinct, only one of which was for jaywalking (which was less than one percent of the total summonses issued).
2. In the 15-month period from March 16, 2022 through the incident date of June 17, 2023, a total of 963 criminal summonses were issued in the 23 Precinct, only 16 of which were for jaywalking (less than two percent).
3. Citywide, in the year preceding the formation of the NST, a total of 40,419 summonses were issued throughout all of NYC, only 59 of which were for jaywalking (less than one percent). Similarly, from March 16, 2022 through June 17, 2023, a total of 95,856 summonses were issued throughout all of NYC, only 432 of which were for jaywalking (less than one percent).

Based on this review, Dr. Winter concluded that the issuance of jaywalking summonses, both in the 23 Precinct and citywide, was “relatively rare.” (Tr. 67-71, 76-77)

From her review of the data provided by the NYPD:

1. Dr. Winter testified that in the one-year period preceding this incident, Respondent Elliott had prepared a total of four stop reports for self-initiated stops, while Respondent Crudele had prepared two. This sample size was too small for Dr. Winter to draw any conclusions as to whether there was a pattern in Respondents’ law enforcement activities.

2. From her review of the records, neither Respondent had completed any jaywalking summonses during the one year preceding this incident. (Tr. 71-72, 76)

Other than noting the scarcity of jaywalking summonses, Dr. Winter testified that due to the small sample size of enforcement data in this case, there was not enough information for her to offer an expert opinion as to whether race played a role in the stop of § 87(2)(b) Dr. Winter could draw no conclusion as to whether there was a pattern of racial disparity in the enforcement actions of either officer in this case. (Tr. 62-64, 78)

Charges

Each Respondent faces only one charge, for stopping § 87(2)(b) based on his actual or perceived race. Section 304-17 of the Administrative Guide states, “When an officer’s decision to initiate enforcement action against a person is motivated even in part by a person’s actual or perceived race, color, ethnicity or national origin, that enforcement action violates Department policy unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information.” In order to prove this charge, the CCRB has the burden of establishing, by a preponderance of the credible evidence, that the race of § 87(2)(b) a male Black, played a role in the decision by Respondents to stop him.

In attempting to meet that burden, the CCRB has not presented any *direct evidence* that race played a part in Respondents’ law enforcement actions in this case. Instead, the prosecution relies on circumstantial evidence in an effort to prove the charge. Indeed, discriminatory intent may be inferred from circumstantial evidence based on an assessment of the totality of the relevant circumstances. See Washington v. Davis, 426 U.S. 229, 242 (1976). Such an inference,

however, must be the only one that can fairly and reasonably be drawn from the facts. Toward that end, the CCRB has identified several examples of circumstantial evidence that courts have recognized as relevant in a “totality of the circumstances” analysis. These categories of evidence will be discussed below.

A. The sequence of events leading up to the law enforcement activities at issue

In assessing whether law enforcement activity was racially motivated, the events leading up to the officers’ actions are part of the totality of circumstances to be considered. Here, counsel for the CCRB emphasized that Respondents decided to observe § 87(2)(b) a male Black, for a possible jaywalking violation *before* he had actually committed such an infraction. To their credit, though, Respondents conceded as much, readily acknowledging that they were hoping to stop § 87(2)(b) to further their ShotSpotter investigation. They credibly explained that they were investigating the high priority ShotSpotter alert, and § 87(2)(b) was one of only three individuals they observed in the vicinity. For that reason, after first speaking with the two individuals in front of the deli, Respondents decided to keep an eye on § 87(2)(b) with the intention of stopping him if he jaywalked so that they could then interact with him as part of their investigation into the ShotSpotter alert.

Additionally, the CCRB argued that the stop of § 87(2)(b) and subsequent summons, constituted selective enforcement since the officers did not similarly investigate the two Hispanic men for possibly possessing open containers of alcohol in public. However, Respondents credibly explained that the situation with the two individuals in front of the deli was different than with § 87(2)(b) the two males were sitting in front of the deli, and Respondents merely walked up to them and asked some questions about whether they had heard gunshots without having to stop them. § 87(2)(b) in contrast, was walking away from where the officers were

standing, and so they believed they needed to conduct some form of a stop in order to interact with him, since the ShotSpotter alert was the priority. It was for that purpose that they decided to observe § 87(2)(b) with the hope that they would catch him jaywalking, which would provide a lawful basis for stopping him. Although § 87(2)(b) denied that he crossed against the signal, I credit Respondents' testimony that rather than stop § 87(2)(b) initially, they waited until they did, in fact, observe him jaywalk, and it was only then that they initiated the stop. Under these specific circumstances, the stop of § 87(2)(b) and the issuance of the summons, did not constitute selective enforcement.

As such, based on the credible evidence, I am not persuaded that the events preceding the encounter support a conclusion that race played a role in Respondents' decision to stop § 87(2)(b).

B. Respondents' departure from their own and/or their fellow officers' customary practices during the incident in question

In certain situations, a police officer's departure from the Department's customary practices in a given situation could support an inference that the officer acted with racially discriminatory intent. Here, Dr. Winter testified that from her review of the NYPD's summons data, the issuance of jaywalking summonses were a relatively rare occurrence among members of the 23 Precinct. For instance, as discussed above, jaywalking summonses constituted less than two percent of the total summonses issued by the 23 Precinct in the 15 months preceding this incident. Also, Respondent Crudele testified that he had never issued a jaywalking summons prior to the date of the incident. Respondent Elliott, meanwhile, claimed that he had issued such summonses approximately once per month, though he, too, acknowledged he did not regularly

conduct jaywalking stops, and Dr. Winter testified that her review of the records did not indicate that Respondent Elliott had issued any jaywalking summonses in the year preceding the incident.

As such, I find that there was credible evidence that when Respondents stopped § 87(2)(b) and issued him a summons for jaywalking, it was likely a departure from the customary practices of their fellow officers at the time, as well as from their own practices. The significance of this departure will be discussed further in the “Conclusion” section below.

C. Respondents’ violation of law and/or NYPD policies and procedures during the incident

If an officer engages in enforcement action that is in violation of the law, such activity, depending on the circumstances, can be a factor in determining whether the officer acted with racial bias. In this case, the evidence established that following the ShotSpotter alert, Respondents witnessed § 87(2)(b) cross the street against the traffic signal. Based on their observations, the officers initiated a stop of § 87(2)(b) and issued him a summons for jaywalking. Although subsequent to this incident the law was changed so that jaywalking can no longer be used as a basis for stopping an individual, on the date in question jaywalking was a recognized offense, providing Respondents with a lawful basis for stopping § 87(2)(b). As such, I find that at the time of the incident, Respondents did not violate the law, nor did they run afoul of NYPD policy.

D. The falsity of Respondents’ non-discriminatory explanations for their actions

The falsity of an officer’s race-neutral explanation for their actions can support an inference that the officer was trying to conceal a discriminatory motive. Here, counsel for the CCRB questioned the explanation provided by Respondents. Specifically, counsel noted that during the 20 minutes in which § 87(2)(b) was detained, neither Respondent questioned him

about the ShotSpotter alert. It was, indeed, surprising that the officers never actually asked § 87(2)(b) about a gunshot. They did, however, interact with § 87(2)(b) for several minutes, during which time they had an opportunity to observe his behavior, learn that § 87(2)(b) who was employed with the City, had just parked his car and was walking to the store; when he realized the store was closed, he reversed course and was heading home when the Respondents stopped him outside his residence. Although they did not directly question § 87(2)(b) about the gunshot, from the totality of their interaction, and based on their experience as police officers, Respondents reasonably determined that § 87(2)(b) was not involved in the gunshot. As such, I am not persuaded by the evidence that Respondents provided a false explanation for their actions, in an attempt to conceal a discriminatory motive for stopping § 87(2)(b).

E. Data showing a pattern of racial disparities in the officers' enforcement activity over time

Where there is data establishing a pattern of racial disparities in an officer's enforcement activity, such data could be an important factor to consider in assessing a claim of racial bias. Here, such proof would be relevant circumstantial evidence that Respondents acted with racial bias when they stopped § 87(2)(b) a male Black, in this case. However, Dr. Winter, the CCRB's expert in data analysis, testified that there was an insufficient sample size for her to conclude there was a pattern of racial disparity in the enforcement actions of either Respondent. Indeed, as discussed above, other than noting the relative scarcity of jaywalking summonses, Dr. Winter testified that she could draw no conclusion as to whether either Respondent acted with discriminatory intent in this matter.

As such, on this record, the data does not establish a pattern of racial disparities in Respondents' enforcement actions over time.

F. Respondents' histories of prior biased acts or similar misconduct committed against persons from § 87(2)(b) racial group

Proof of past discriminatory conduct by an officer could constitute relevant circumstantial evidence. Here, such proof would have been useful in assessing whether Respondents acted with racial bias toward § 87(2)(b) a male Black, when they stopped him in this case. However, no evidence was presented that either Respondent had a history of prior racially biased acts or misconduct against Black individuals.

Conclusion

After reviewing the totality of the circumstances, I am not persuaded that race was a factor in Respondents' decision to stop § 87(2)(b). Notably, there was no direct evidence of racial bias in this case. Additionally, based on this specific record, I find that there was insufficient circumstantial evidence for the CCRB to meet its burden.

As discussed above, the sequence of events leading up to the stop of § 87(2)(b) did not support an inference that race played a role in that stop, or that Respondents were engaged in selective enforcement against § 87(2)(b) based on his race. With their actions, Respondents did not violate the law or NYPD policies, nor did they provide false non-discriminatory explanations for their actions. The data, as testified to by Dr. Winter, did not establish a pattern of racial disparities in Respondents' enforcement activity over time. The record also was devoid of evidence of prior biased acts committed against Black individuals by Respondents.

Indeed, in assessing the totality of the circumstances here, the only evidence that could arguably support an inference of racial bias is that the issuance of the jaywalking summons in this case was a departure from customary practices. As previously noted, such summonses were

relatively scarce within the 23 Precinct, raising questions about Respondents' decision to stop § 87(2)(b) for jaywalking in this case. But even if the issuance of the summons here was a departure from the norm, the evidence did not prove that § 87(2)(b) was targeted because of his race, or that the decision to stop him and issue the summons was in any way race-based. Again, Respondents wanted to interact with § 87(2)(b) because he was one of only three individuals Respondents observed in the area of the ShotSpotter alert, and they already had spoken with the other two.

In the absence of such proof, this Court is not persuaded that race played any role in the officers' decision-making in this case. The record did not establish, by a preponderance of the credible evidence, that Respondents stopped § 87(2)(b) based, even in part, on his actual or perceived race. Accordingly, I find each Respondent Not Guilty.

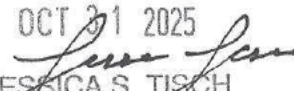
Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

OCT 31 2025



JESSICA S. TISCH
POLICE COMMISSIONER



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MOHAMMAD KHALID
INTERIM CHAIR

August 8, 2025

VIA ELECTRONIC MAIL

Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Police Officers Sheldon Elliott & Matthew Crudele
Disciplinary Case Nos. C-032155 & C-032156

Commissioner Tisch:

The above-referenced cases were tried on July 9th, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter “NYPD”). The CCRB has reviewed the July 24th, 2025, draft decision of Assistant Deputy Commissioner – Trials, Jeff S. Adler. We respectfully submit the following comments regarding the draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

STATEMENT OF FACTS

At around 1:30 a.m. on June 17th, 2023, Police Officer Sheldon Elliott and Police Officer Matthew Crudele, both members of the 23rd Precinct’s Neighborhood Safety Team, responded to a ShotSpotter alert in the vicinity of § 87(2)(b) between § 87(2)(b) and § 87(2)(b). Upon exiting their vehicle, the officers approached two ostensibly Hispanic men sitting outside a deli and drinking out of brown paper bags and asked them whether they had heard anything like a gunshot in the area. The men said they had not.

As the officers spoke with these men, § 87(2)(b) a Black man, walked by on his way to the convenience store. Moments after observing § 87(2)(b) and without interviewing additional individuals seated inside the deli, Respondent Elliott made a hand gesture to Respondent Crudele, pointing to § 87(2)(b) as he walked past. The officers rushed back to their car. As they entered their vehicle, Respondent Elliott said to Respondent Crudele, “If he gives us that jay...” Respondent Crudele replied, “Yeah” (CCRB Ex. 2, 01:37-01:42). For the next two minutes, Respondents followed § 87(2)(b) tracing his direction of travel and commenting on his movements. Respondents then exited their vehicle and stopped § 87(2)(b) for allegedly jaywalking.

After stopping § 87(2)(b) Respondent Elliott and Respondent Crudele requested § 87(2)(b) ID. § 87(2)(b) initially refused to provide his ID but gave Respondents his name, birthdate, and address. Despite their decision to enforce a jaywalking violation, Respondents soon realized they did not have a summons book and subsequently chose to request one from other officers in the area. These additional officers came to the scene minutes later and provided Respondent Elliott and Respondent Crudele with a summons book. When one of these officers asked whether Respondent Elliott needed a “C” or an “Oath” summons, Respondent Elliott could not answer and responded, “Uh, jaywalking” (CCRB Ex. 3, 0:55-1:10). Respondent Elliott ultimately issued § 87(2)(b) a criminal summons for jaywalking. In all, the stop of § 87(2)(b) took more than twenty minutes. At no point did any officer ask § 87(2)(b) any questions related to the ShotSpotter alert. § 87(2)(b) alleged that the stop was pretextual and that his race played a role.

ARGUMENT

I. The Assistant Deputy Commissioner Erred in the Application of the Legal Standard for Analyzing Charges of Racially Biased Policing

The Assistant Deputy Commissioner accurately identified the legal standard governing charges of taking law enforcement action based upon actual or perceived race (Decision, pp. 10-11). As the Court explained, NYPD Administrative Guide Section 304-17: Department Policy Prohibiting Racial Profiling and Bias-Based Policing prohibits a “decision to initiate enforcement action against a person [that] is *motivated even in part* by a person’s actual or perceived race, color, ethnicity or national origin, . . . unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information.” Admin. Guide § 304-17 ¶ 3 (emphasis added). Administrative Guide § 304-17’s prohibition on racially motivated police-initiated enforcement action applies not only to vehicle stops, but to any police-initiated enforcement action, “including, but not limited to, arrests, Level 3 Terry stops, frisks, searches, [and] summonses.” *Id.*

The Court correctly elaborated that race does not have to be the sole, primary, or predominant motivation for the law enforcement action in question to sustain an allegation of racially biased policing. *See Village of Arlington Heights v. Metro. Housing Dev. Corp.*, 429 U.S. 252, 265 (1977); *United States v. City of Yonkers*, 96 F.3d 600, 611-12 (2d Cir. 1996); *Floyd v. City of New York*, 959 F.Supp.2d 540, 571 (S.D.N.Y. 2013) (applying the *Arlington Heights/Yonkers* motivating factor standard to allegations of discriminatory policing); *Raza v. City of New York*, 998 F.Supp.2d 70, 79-80 (E.D.N.Y. 2013) (same); *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1163-64 (C.D. Cal. 2022) (same). If the preponderance of the evidence establishes that the civilian’s race played any role in the officer’s decision making, the racial profiling allegation should be sustained, regardless of any non-discriminatory reasons the officer gives for their actions. *Yonkers*, 96 F.3d at 612; *Raza*, 998 F.Supp.2d at 79-80 (E.D.N.Y. 2013); *Bennett v. Health Sys., Inc.*, 92 A.D.3d 29, 40 (1st Dep’t 2011). Thus, a law enforcement action that is otherwise legally justified (e.g., a stop supported by probable cause of a pedestrian violation) can still constitute racial profiling if the officer was motivated to take the action at least in part by the civilian’s actual or perceived race. *See PBA v. City of N.Y.*, 142 A.D.3d 53, 66-67 (1st Dep’t 2016) (“To be sure, police conduct that may be lawful for search and seizure purposes may nonetheless violate equal protection principles” where “the officer is motivated by an intent to discriminate”); *Floyd*, 959 F.Supp.2d at 667 (“the [] position that racial profiling cannot exist provided that a stop is based on reasonable suspicion . . . is fundamentally inconsistent

with the law of equal protection”); *Raza*, 998 F.Supp.2d at 79 (holding that “the existence of [] reasonable suspicion or probable cause does not automatically defeat” a religious profiling claim and that “[e]ven if Defendants’ investigations of Plaintiffs were supported by criminal predication, if those investigations were improperly influenced by Plaintiffs’ religion, they may be unconstitutional”).

In addition, a law enforcement official’s actions “need not be motivated by ill will, enmity, or hostility” to be discriminatory; what matters is whether the officer intentionally treats a civilian differently because of one or more of their protected demographic traits (e.g., race, religion, etc.). *See Floyd*, 959 F.Supp.2d at 662; *Hassan v. City of N.Y.*, 804 F.3d 277, 297-98 (3d Cir. 2015).

As the court also correctly recognized, “discriminatory intent may be inferred from circumstantial evidence.” (Decision, p. 10); *see also Millan-Hernandez v. Barr*, 965 F.3d 140, 148 (2d Cir. 2020); *Bennett v. Health Sys., Inc.*, 92 A.D.3d at 40-41. Seldom is one piece of circumstantial evidence sufficient on its own to establish racially discriminatory intent. The factfinder must instead consider the “totality of the relevant facts.” *Washington v. Davis*, 426 U.S. 229, 242 (1976); *Leblanc-Sternberg v. Fletcher*, 67 F.3d 412, 425 (2d Cir. 1995). Examples of circumstantial evidence to consider include, but are not limited to:

- (i) the falsity of the officers’ non-discriminatory explanations for their actions;
- (ii) the sequence of events leading up to the law enforcement activities at issue;
- (iii) the officers’ violation of law and/or NYPD policies and procedures during the incident;
- (iv) the officers’ departure from their own and/or their fellow officers’ customary practices during the incident in question; and
- (v) data showing a pattern of racial disparities in the officers’ enforcement activity over time.

However, after accurately identifying this legal standard and enumerating various categories of relevant circumstantial evidence, the draft decision erred in applying this standard. The draft decision misinterprets the evidence presented at trial, omits key facts, and fails to consider how the evidence in each of the above categories supports a finding of racially biased policing in this case. These categories of circumstantial evidence are addressed in turn.

A. Falsity of Non-Discriminatory Explanations for the Officers’ Actions

The draft decision overlooks crucial evidence that undermines Respondent Elliott’s and Respondent Crudele’s explanations for their decision to stop and summons § 87(2)(b). The falsity of a law enforcement officer’s race-neutral explanation for his/her actions can, in combination with other circumstantial evidence, support a finding that the officer was trying to conceal a discriminatory motive. *See Turkmen v. Hasty*, 789 F.3d 218, 256-57 (2d Cir. 2015), *rev’d on other grounds*, 137 S.Ct. 1843 (2017); *Rodriguez v. Barr*, 943 F.3d at 143 (“One can reasonably infer from the agents’ preparation of an unreliable report at the time of the arrest, which would ultimately be used against Rodriguez, that the arrest was premised on an impermissible basis[,] [a]nd, given the other facts in this case, one can infer that this impermissible basis was race.”); *Anderson v. Cornejo*, 284 F.Supp.2d at 1051, 1055 (Noting that “proof of the pretextual nature of the grounds for a search may be a basis for inferring discriminatory motive” and holding that officer’s false statement as to the basis for strip search, in combination with other circumstantial evidence, “is enough to find that [officer] acted, at least in part because [plaintiff] is an African-American woman.”). The draft decision fails to adequately consider how Respondents’ accounts provided at trial are

inconsistent with other evidence, including Respondent Elliott's own explanations for his conduct that he provided to the CCRB during its investigation.

i. Respondent Elliott Previously Stated that the Stop Was Not Related to the ShotSpotter Alert

First, the draft decision states that, "to [Respondents'] credit," they admitted that their stop of § 87(2)(b) was pretextual and that the stop was primarily related to their ShotSpotter investigation (Decision, p. 11). However, as highlighted at trial, Respondent Elliott's testimony to that effect was inconsistent with his prior statement to the CCRB. In this CCRB interview, which was conducted closer in time to the incident, Respondent Elliott said that, after stopping § 87(2)(b) he did not attempt to speak with him about the ShotSpotter because "that wasn't the purpose of my stop" (Tr. p. 174 lines 4-13). The draft decision does not make even passing reference to this inconsistency, which casts doubt on the credibility of Respondent Elliott's testimony.

ii. Respondents' Conduct During the Stop Contradicts its Stated Purpose

The claim that Respondents engaged in a pretextual stop to further a ShotSpotter investigation is belied by the fact that, as the draft decision acknowledges, the officers did not ask § 87(2)(b) a single question about any gunshot. The draft decision recognizes that it was "surprising" that the officers did not ask such questions but then concludes that Respondents' investigation otherwise indicated that § 87(2)(b) was not involved in any gunshot (Decision, p. 14). However, it is unclear how the observations that the decision cites would have been able to confirm to Respondents that § 87(2)(b) was not involved: the decision states that Respondents "observe[d] § 87(2)(b) behavior," learned that he was employed with the City, that he had just parked his car, that he had gone to the store, and that he was on his way home when officers stopped him outside of his residence. None of these observations proved that § 87(2)(b) was not involved in any gunshot.

Similarly, the draft decision's conclusion that Respondents did not question § 87(2)(b) about the ShotSpotter because they were satisfied that he was not involved in any gunshot is incoherent with the draft decision's finding that Respondents wanted to speak with § 87(2)(b) "because he was one of only three individuals Respondents observed in the area of the ShotSpotter alert, and they already had spoken with the other two" (Decision, p. 14). One would imagine that, if this were Respondents' actual reason for the stop, they would ask § 87(2)(b) for information related to their investigation, as Respondents did with the other two individuals with whom they spoke. An investigation that could only conclude that § 87(2)(b) was not "involved in any gunshot" would only assess § 87(2)(b) as a potential suspect, and not as a witness who may have heard or seen something relevant to the ShotSpotter alert. Stated differently, in the draft decision's version of events, two Hispanic men were investigated as potential witnesses to a gunshot, while § 87(2)(b) was investigated as a potential perpetrator.

The draft decision also does not address why Respondents would spend more than twenty minutes during a "high priority" investigation (Decision, pp. 4, 11) speaking with one person, § 87(2)(b) and issuing a jaywalking summons to that person, a process that was prolonged by Respondents' decision to call other officers to the scene to obtain a summons book. Given that Respondents were supposedly

engaging in an investigation of a ShotSpotter alert of the “highest priority” (Respondent Crudele Testimony, Tr. p. 127 lines 18-21) and, per their testimony, used jaywalking only as a pretext to stop § 87(2)(b) it is illogical that they would then spend valuable time in the midst of that investigation issuing a summons for jaywalking, a violation for which neither of them had issued a single summons in the year prior to the incident (Decision, p. 10).¹

iii. Respondents Did Not Need a Pretext to Speak with § 87(2)(b)

The narrative that Respondents needed a reason to stop § 87(2)(b) so that they could advance their ShotSpotter investigation is similarly at odds with basic case law. As *People v. De Bour*, 40 N.Y.2d 210, 223 (N.Y. 1976) explains, Respondents needed only an “objective credible reason” not necessarily indicative of criminality to approach § 87(2)(b) and request information. The ShotSpotter alert provided them with such a reason. See, e.g., *People v. Harrington*, 193 A.D.2d 756, 756 (N.Y. App. Div. 2d Dep’t 1993) (explaining that the sound of a potential gunshot provided officers with at least an objective credible reason to warrant an approach to inquire). Requests for information can include questions about an individual’s identity, address, destination, or reason for being in the area. See *New York v. Hollman*, 79 N.Y.2d 181, 184 (N.Y. 1992). In other words, the information that Respondents were able to elicit from § 87(2)(b) during the stop in question and that confirmed to them his lack of involvement in any gunshot would have fallen within a permissible line of questioning during a Level I *De Bour* encounter. Contrary to Respondents’ testimony, nothing prevented them from approaching § 87(2)(b) to ask him non-accusatory questions related to their ShotSpotter investigation. While § 87(2)(b) would not have been required to answer these questions and would have been free to leave under these circumstances, it is wrong to claim that a pretextual jaywalking stop was the only way Respondents could speak with § 87(2)(b). Respondents’ statements to the contrary are misleading.

iv. Respondents Gave Other False Testimony That Undermines Their Credibility

Respondent Crudele also gave evasive testimony at trial regarding his observations prior to stopping § 87(2)(b) stating that he “couldn’t determine § 87(2)(b) race” when § 87(2)(b) initially passed the officers and could only observe that he had “a darker complexion” (Tr. p. 111, lines 19-24). Respondent Crudele’s testimony on this point is implausible. Body-worn camera footage and Respondent Elliott’s testimony make plain that § 87(2)(b) was a Black man and that Respondents were able to observe § 87(2)(b) race when he walked past. See Ex. 1, 01:18 – 01:30; Tr. p. 162, line 1. The draft decision fails to discuss this evasive testimony, which is material to whether the officers took § 87(2)(b) race into account in determining to stop him.

Finally, the draft decision recognizes that issuing § 87(2)(b) a summons for jaywalking was a departure from the officers’ customary practices, but it does not address in its discussion of the falsity of the officers’ explanations for their actions Respondent Elliott’s false testimony that he repeatedly issued jaywalking summonses prior to this stop. According to Respondent Elliott’s testimony, he conducted jaywalking stops approximately once per month and issued summonses for jaywalking in 99% of these

¹ Cf. Tr. p. 127, line 18 – p. 128, line 3 (Respondent Crudele testimony that Respondents’ first and apparently only other police action in response to the ShotSpotter alert was a thirty second conversation with the two males outside the deli).

stops (Tr. p. 183 line 14 – p. 184 line 3). The NYPD’s own data disprove these statements. As the draft decision explains, the CCRB’s Chief Data Scientist, Dr. Alix Winter, testified that her review of records provided by the NYPD demonstrated that neither Respondent Elliott nor Respondent Crudele issued any jaywalking summonses in the year preceding this incident (Decision, p. 10). NYPD records also demonstrated that Respondent Elliott prepared only four stop reports in the year preceding this incident while Respondent Crudele prepared only two. Although these data establish that Respondent Elliott’s testimony was empirically false, the draft decision omits any discussion of this testimony in its consideration of the falsity of the officers’ explanations for their conduct.

The draft decision thus fails to engage with key evidence that undermines Respondents’ accounts and casts doubt on their credibility at trial. Contrary to the draft decision’s finding, the falsity of the officers’ explanations for their actions supports a determination that their conduct toward § 87(2)(b) was influenced, at least in part, by his race.

B. Sequence of Events Leading Up to the Law Enforcement Activities at Issue

The draft decision recognizes that Respondents Elliott and Crudele conducted a pretextual stop of § 87(2)(b) but misinterprets important evidence that the events preceding that stop support a finding that race played a role in the decision to stop him. The United States Supreme Court has held that when analyzing claims of racial discrimination, “[t]he specific sequence of events leading up to the challenged decision [] may shed some light on the decisionmaker’s purposes.” *Village of Arlington Heights*, 429 U.S. at 267. Thus, the events leading up to a challenged law enforcement action, in combination with other circumstantial evidence, can support a finding that the officer who took the action was motivated by racial discrimination. *See, e.g., Rodriguez v. Barr*, 943 F.3d 134, 142-43 (2d Cir. 2019); *Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1164-65 (C.D. Cal. Nov. 23, 2022); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020); *Marshall v. Columbia Lea Reg’l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003).

i. Respondents Observed § 87(2)(b) Race Prior to Stopping Him

While the draft decision correctly notes that Respondents surveilled § 87(2)(b) before observing him commit any violation (Decision, p. 11), it fails to engage with the evidence that they knew § 87(2)(b) race prior to stopping him. The fact that an officer knew an individual’s race before stopping that individual can support an inference that the individual’s race may have played a role in the officer’s decision to take such action. *See Ballew v. City of Pasadena*, 642 F.Supp.3d 1146, 1164-65 (C.D. Cal. Nov. 23, 2022); *Commonwealth v. Long*, 152 N.E.3d 733, 739-40 (Mass. 2020); *Marshall v. Columbia Lea Reg’l Hosp.*, 345 F.3d 1157, 1169 (10th Cir. 2003). Body-worn camera footage demonstrates that when § 87(2)(b) walked by, both Respondent Elliott and Respondent Crudele observed § 87(2)(b) who was clearly a Black man. Indeed, Respondent Elliott said as much in his testimony, agreeing, when asked whether a Black male walked by the deli, “A dark skin male, yes” (Tr. p. 162, line 1).² The draft decision acknowledges that § 87(2)(b) is Black but does not discuss the relevance of Respondents’ observation of his race in its discussion of the sequence of events leading up to the stop of § 87(2)(b).

² Respondent Crudele, for his part, stated that he “couldn’t determine § 87(2)(b) race” when § 87(2)(b) initially passed the officers and could only observe that he had “a darker complexion” (Tr. p. 111, lines 19-24). This testimony contradicts the body-worn camera footage and Respondent Elliott’s testimony and is not credible, *see Section I.A.iv.*

ii. Respondents Followed § 87(2)(b) Prior to Stopping Him

The evidence shows that Respondents followed § 87(2)(b) for more than two minutes prior to stopping him. Evidence that an officer followed a civilian for an extended period of time prior to stopping that civilian may suggest an improper discriminatory motive for the stop. *Long*, 152 N.E.3d at 740, n.9; *Marshall*, 345 F.3d at 1169.

Respondents' body-worn camera footage demonstrates that for more than two minutes before their more than twenty-minute stop of § 87(2)(b) Respondents followed § 87(2)(b) watching him walk down the block, tracing his direction of travel, and commenting on his movements.³ The draft decision asserts that this evidence reflects the officers' desire to stop § 87(2)(b) so they could speak to him about a ShotSpotter alert (Decision, pp. 11-12). However, at any point during this period of observation, Respondents could have approached § 87(2)(b) to request information related to the ShotSpotter alert. *See De Bour*, 40 N.Y.2d at 223. Instead, they spent minutes surveilling him, a decision inconsistent with the time-sensitive nature of the ShotSpotter investigation. The draft decision erroneously dismisses the evidence that this surveillance of § 87(2)(b) suggests an improper discriminatory motive for the stop.

iii. Respondents Failed to Interview Other Individuals in the Area

Relatedly, the draft decision states that § 87(2)(b) “was only one of three individuals [Respondents] observed in the vicinity” (Decision, p. 11). Yet, Respondents' body-worn camera shows that there were at least two individuals inside the deli that Respondents failed to interview (Exhibit 2 at 01:03 – 01:06). Whether or not Respondents observed these two individuals—plainly visible inside the deli—is a red herring. The fact remains that officers neglected to investigate whether there were other individuals inside the deli because they diverted all their investigative attention to determining whether § 87(2)(b) would jaywalk. The draft decision omits any mention of these additional individuals on scene, credulously accepts testimony that the officers did not observe these individuals, and fails to consider how racial bias may have played a role in the officers' purported oversight.

³ “Looked around,” says Respondent Crudele of § 87(2)(b) (Exhibit 1, 00:02:02). “He doubled back,” Respondent Crudele later adds (Exhibit 1, 00:03:21). “He was walking straight and he just turned around and now he’s headed this way,” Respondent Crudele continues.



Image 1: Still Frame from Exhibit 2 Showing Two Other People Inside Deli

iv. § 87(2)(b) Did Not Behave Suspiciously Prior to the Stop

The draft decision misrepresents the available evidence regarding § 87(2)(b) conduct prior to the stop. In its section labeled ‘Evidence,’ the draft decision states, “When § 87(2)(b) walked past [Respondents], he did not look in the officers’ direction nor did he make eye contact. Respondent Elliott testified that in his experience, which included two-and one-half years with the Anti-Crime Unit before being assigned to the NST, when someone avoids eye contact in this manner, and only glances back after they are some distance away to see if they are being watched, it may signal that they are involved in some form of criminal activity” (Decision, p. 5). The draft decision improperly credits this testimony, which conflicts with the evidentiary record and with case law.

Officer body-worn camera footage and Respondent Crudele’s pre-trial statement to the CCRB flatly contradict the assertion that § 87(2)(b) was behaving suspiciously prior to the stop. Respondent Elliott’s body-camera footage captures § 87(2)(b) walk by the officers as they interact with two men outside a deli (CCRB Ex. 2, 01:18 – 01:25). § 87(2)(b) appears calm, walks at a normal pace, and looks in the direction of the officers. Indeed, Respondent Crudele, when interviewed by the CCRB, was asked whether there was “anything that raised suspicion that § 87(2)(b) might be related to the ShotSpotter.” Respondent Crudele replied, “No” (Tr. p. 115 lines 2-17). Respondent Elliott’s testimony that § 87(2)(b) behaved suspiciously speaks to Respondent Elliott’s intuition—inherently vulnerable to bias—and not to the objective credible evidence in this case. The draft decision errs in accepting this testimony.

Even accepting the dubious premise that § 87(2)(b) avoided eye contact with officers, courts have repeatedly rejected the claim that an individual’s failure to make eye contact with an officer represents evidence of criminal activity. *See, e.g., People v Barreras*, 253 AD2d 369, 677 NYS2d 526 (N.Y. App. Div. 1st Dep’t 1998) (holding that shaking hands, avoidance of eye contact and extreme nervousness is insufficient to give rise to the common-law right of inquiry); *see also United States v. Broomfield*, 417 F.3d

654, 655 (7th Cir. 2005) (“the officer testified that he was additionally suspicious because when he drove by Broomfield in his squad car... he noticed that Broomfield was ‘staring straight ahead.’ Had Broomfield instead glanced around him, the officer would doubtless have testified that Broomfield seemed nervous... Whether you stand still or move... you will be described by the police as acting suspiciously should they wish to stop or arrest you. Such subjective, promiscuous appeals to an ineffable intuition should not be credited”); *United States v. Urrieta*, 520 F.3d 569, 577 (6th Cir. 2008) (holding that indicators of nervousness in interactions with police, including avoiding eye contact, are “inherently *unsuspicious*” and should be given “very limited or no weight in the reasonable-suspicion calculation”) (emphasis in original).

Indeed, Respondent Elliott’s testimony echoes NYPD officers past use of the subjective “furtive movements” rationale to justify their stops of Black and Latino pedestrians, which a federal court in *Floyd v. City of New York* found was evidence of racial bias in the NYPD’s stop, question, and frisk practices. *See Floyd*, 959 F.Supp.2d at 661 n.760; *see also Davis v. City of New York*, 902 F. Supp. 2d 405, 416 (S.D.N.Y. 2012) (“even if defendants could cite to undisputed actions that Smith took, courts should look skeptically on any claim that an individual appeared nervous or furtive”); *People v. Carillo*, 9 A.D.3d 333, 334 (N.Y. 1st Dep’t 2004) (“[t]he prosecutor’s explanation that he challenged this juror because he ‘just did not get a good feel from her’... is the type of vague, non-specific and, thus, highly suspicious reason that we have previously held leads to an inescapable inference of discriminatory motive”). Respondent Elliott’s testimony that § 87(2)(b) failed to make eye contact and therefore was suspicious only underscores the racial bias at play in this case.

v. Respondents Engaged in Selective Enforcement

The draft decision recognizes that Respondents Elliott and Crudele stopped § 87(2)(b) for jaywalking after failing to investigate two Hispanic men for possibly possessing open containers of alcohol in public (Decision, p. 11). The Equal Protection Clause of “the Constitution prohibits selective enforcement of the law based on considerations such as race,” even when there is an objective legal basis (e.g., probable cause) for the law enforcement action taken. *Whren v. United States*, 517 U.S. 806, 813 (1996); *People v. Robinson*, 97 N.Y.2d 341, 351-52 (2001); *Floyd*, 959 F.Supp.2d at 667.

An officer taking law enforcement action against a member of a particular demographic group but not against a member of another demographic group engaged in similar behavior therefore can be strong evidence that the action was racially motivated. For instance, in *Floyd v. City of New York*, a stop of a Black pedestrian was held to be racially motivated in part because “other non-black individuals were present and presumably behaving no differently than McDonald – yet only McDonald was stopped.” *Floyd*, 959 F.Supp.2d at 633. *See also PBA v. City of N.Y.*, 142 A.D.3d at 66-67; *Miller-El v. Dretke*, 545 U.S. 231, 241 (2005) (“[i]f a prosecutor’s proffered reason for striking a black panelist applies just as well to an otherwise-similar nonblack who is permitted to serve, that is evidence tending to prove purposeful discrimination”).

After rightly acknowledging that Respondents took law enforcement action against § 87(2)(b) but not against members of another demographic group committing similarly minor infractions, the draft decision concludes that “Respondents credibly explained that the situation with the two individuals in front of the deli was different than with § 87(2)(b) the two males were sitting in front of the deli, and

Respondents merely walked up to them and asked some questions about whether they had heard gunshots without having to stop them. § 87(2)(b) in contrast, was walking away from where the officers were standing, and so they believed they needed to conduct some form of a stop in order to interact with him, since the ShotSpotter alert was the priority” (Decision, pp. 11-12).

As discussed under Section I.A, *Falsity of Non-Discriminatory Explanations for the Officers’ Actions*, this account operates from a flawed premise. Under *De Bour*, 40 N.Y.2d at 223, officers need only an “objective credible reason” not necessarily indicative of criminality to approach someone and request information. A ShotSpotter alert provided Respondents with such an objective credible reason. *See Harrington*, 193 A.D.2d at 756. Respondents in this case had the legal authority to approach § 87(2)(b) and ask him non-accusatory questions related to their ShotSpotter investigation. They did not need to stop him. That they chose to stop and issue § 87(2)(b) a summons after failing to stop and summons similarly situated individuals of a different race speaks to selective enforcement and racial bias. The draft decision distorts this evidence of selective enforcement and fails to apply relevant case law.

C. Officers’ Violation of Law and/or NYPD Policies and Procedures

The fact that a law enforcement action was taken in violation of the law (e.g., a pedestrian stop made without probable cause of a violation) can, in combination with other circumstantial evidence, support a finding that such action was racially motivated. *Rodriguez v. Barr*, 943 F.3d at 143 (“the sheer paucity of evidence supporting a finding of probable cause buttresses the conclusion that the arrest was racially motivated”); *Millan-Hernandez v. Barr*, 965 F.3d at 148 (“We have recognized that, when a law enforcement officer detains and questions an individual about her immigration status although she is not suspected of a crime, those circumstances offer a strong suggestion that the search or seizure was improperly based on race”); *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1055 (N.D. Ill. 2003) (“[T]he lack of adequate suspicion” in combination with other circumstantial evidence, such as false statements on police paperwork, can support “a reasonable inference that [the police officer] acted, at least in part” because of the civilian’s race), *vacated and rev’d in part on other grounds*, 355 F.3d 1021 (7th Cir. 2004). Similarly, actions taken in violation of police department policy may suggest that the subject officer acted with a discriminatory purpose. *See Rodriguez*, 943 F.3d at 142; *Long*, 152 N.E.3d at 740 n.12.

The draft decision wrongly states that the evidence in this case establishes that Respondents witnessed § 87(2)(b) cross the street against a traffic signal (Decision, p. 13). This conclusion is inconsistent with § 87(2)(b) testimony and is not supported by body-worn camera footage. The decision notes that § 87(2)(b) testified that he did not jaywalk (Decision, p. 12). Body-worn camera footage also does not demonstrate that the officers observed § 87(2)(b) jaywalk. As the officers follow § 87(2)(b) prior to stopping him, they are recorded making several statements regarding their observations: At 3 minutes and 21 seconds of Respondent Crudele’s body-worn camera footage, Respondent Crudele says, “He doubled back” (Exhibit 1, 00:03:21). Respondent Elliott replies, “Hm?” Respondent Crudele says, “He just doubled back.” Respondent Elliott replies, “Yeah?” Respondent Crudele confirms. Respondent Elliott then turns left onto § 87(2)(b) and continues driving at a slow rate of speed. He asks, “He went across, huh?” Respondent Crudele responds, “He didn’t go across, he just went this way.” Respondent Elliott asks, “He went that way?” Respondent Crudele says, “No, he was walking straight, and he just turned around and now he’s headed this way. Yeah, you see him?” At 3 minutes and 38 seconds, Respondent

Elliott says, “That means he went across on the light,” and exits the vehicle to initiate the stop of § 87(2)(b)

At no point prior to the stop does either officer state that he saw § 87(2)(b) jaywalk. Given that § 87(2)(b) consistently said that he did not jaywalk and given the inconclusive nature of Respondents’ body-worn camera footage, it is unclear how the draft decision reaches the conclusion that the evidence establishes that § 87(2)(b) jaywalked. The only evidence for this assertion is Respondents’ testimony that at other times was inconsistent or untruthful and that § 87(2)(b) testimony refutes.

The evidence regarding whether § 87(2)(b) jaywalked is either inconclusive or, given that the draft decision cites no evidence of untruthful testimony from § 87(2)(b) supports a determination that Respondents did not have probable cause to stop § 87(2)(b) a finding that would indicate that the stop was racially motivated. The draft decision credits officer testimony over that of § 87(2)(b) without a proper basis.

D. Officers’ Departure from Customary Practices

The draft decision correctly finds that Respondents Elliott and Crudele departed from their own and from their fellow officers’ customary practices during the incident in question. A government official’s, including a police officer’s, departure from his/her or his/her agency’s customary practices in a given situation can support a finding that the official acted with racially discriminatory intent. *Village of Arlington Heights*, 429 U.S. at 267; *Moore v. MTA*, 999 F.Supp.2d 482, 497-98 (S.D.N.Y. 2013); *Doe v. Village of Mamaroneck*, 462 F.Supp.2d 520, 548-49 (S.D.N.Y. 2006).

The decision notes that Dr. Winter found that in the year prior to the formation of the NST on March 16, 2022, there were a total of 332 criminal summonses issued in the 23rd Precinct, only one of which was for jaywalking. In the fifteen-month period from March 16, 2022, through the incident date of June 17, 2023, a total of 963 criminal summonses were issued in the 23rd Precinct, only 16 of which were for jaywalking (less than one percent of the total summonses issued). In the year preceding the formation of the NST, a total of 40,419 summonses were issued in all of New York City, only 59 of which were for jaywalking (less than one percent). Similarly, from March 16, 2022, through June 17, 2023, a total of 95,856 summonses were issued in New York City, only 432 of which were for jaywalking (less than one percent) (Decision, p. 9).

From her review of the data provided by the NYPD, Dr. Winter testified that in the one-year period preceding this incident, Respondent Elliott had prepared a total of four stop reports for self-initiated stops, while Respondent Crudele had prepared only two. Dr. Winter also explained that neither Respondent had completed any jaywalking summonses in the year preceding this incident (Decision, p. 10).

The data establish that addressing a jaywalking violation was a noteworthy departure from Respondent Elliott and Respondent Crudele’s customary practices and from the customary practices of their fellow officers. Yet, after acknowledging as much, the draft decision states in its conclusion that “even if the issuance of the summons here was a departure from the norm, the evidence did not prove that § 87(2)(b) was targeted because of his race, or that the decision to stop him and issue the summons was in any way race-based. Again, Respondents wanted to interact with § 87(2)(b) because he was one of only

three individuals Respondents observed in the area of the ShotSpotter alert, and they already had spoken with the other two” (Decision, p. 16). This conclusion follows from a serious misrepresentation of the record.

As discussed above, § 87(2)(b) was not one of only three individuals in the area of the ShotSpotter alert. At least two additional people were inside the deli that Respondents initially approached. Respondents’ testimony that they observed only two individuals other than § 87(2)(b) thus points to a disturbing conclusion: Respondent Elliott and Respondent Crudele’s brief investigation of a ShotSpotter alert was derailed at the first sight of § 87(2)(b) a Black man, who for the next twenty-five minutes became their sole focus. Once § 87(2)(b) walked past, Respondents pre-determined to do something the evidence establishes they seldom, if ever, do: stop him and issue him a summons for jaywalking, a violation that their fellow officers also rarely enforce. This unusual conduct, a stark departure from customary practices, is strong evidence of racial bias. The draft decision greatly undervalues this evidence.

E. Data Showing a Pattern of Racial Disparities in the Officers’ Enforcement Activities

The draft decision rightly notes that data showing a pattern of racial disparities in a police officer’s enforcement activity over time are widely recognized as important circumstantial evidence to consider in a “totality of the relevant facts” analysis of an allegation of racial profiling against that officer (Decision, p. 14). *See, e.g., Marshall*, 345 F.3d at 1168; *Anderson v. Cornejo*, 284 F.Supp.2d 1008, 1050 (N.D. Ill. 2003); *U.S. v. Hare*, 308 F.Supp.2d 955, 992 (D. Neb. 2004); *Johnson v. Holmes*, 782 Fed. Appx. 269, 281-82 (4th Cir. 2019); *Long*, 152 N.E.3d at 739-40. The draft decision also correctly notes that Dr. Winter testified that there was an insufficient sample size for her to conclude there was a pattern of racial disparities in the enforcement actions of either Respondent. Yet, the draft decision fails to acknowledge that the data also do not establish the absence of such a pattern. Such is the nature of small sample sizes—no conclusion could be drawn in either direction.

With respect to summons data, the absence of such data highlights that the decision to issue a summons to § 87(2)(b) for jaywalking was a stark departure from Respondent Elliott and Respondent Crudele’s customary practices, which is itself evidence of racial bias. Meanwhile, there are three possible explanations for the insufficiency of stop report data. One is that, like with summonses, the officers seldom make self-initiated stops (*see Departure from Customary Practices*). Another is that the officers are underreporting their stops (*see Officers’ Violation of Law and/or NYPD Policies and Procedures*). The third is that the officers are making stops but seldom issuing summonses in these stops (and are therefore not required to report the stop in a stop report), raising questions about why they chose to issue a summons here (*see Departure from Customary Practices*). Any of these conclusions amounts to circumstantial evidence of racial bias in the incident at hand.

II. The Findings in the Proposed Draft Decision Must Be Rejected

The record establishes that Respondent Elliott and Respondent Crudele, after responding to a ShotSpotter alert, conducted a pretextual stop of § 87(2)(b) a Black man, for jaywalking. The officers admit that this stop was pretextual but assert that § 87(2)(b) was one of only three individuals they observed in the vicinity of the ShotSpotter alert and that they stopped him to advance their investigation. This explanation for their conduct is paper-thin.

In summary, Respondent Elliott and Respondent Crudele arrived at the location of the ShotSpotter alert and immediately began speaking with two ostensibly Hispanic men who were drinking what were likely alcoholic beverages out of brown paper bags. The officers took no enforcement action toward these other men, who said they had not heard anything like a gunshot in the area. Meanwhile, at least two other individuals—plainly visible on Respondent Elliott’s body-worn camera—sat inside the deli. Rather than approaching these individuals, Respondent Elliott and Respondent Crudele spent the next twenty-five minutes focusing their time and attention on one person, § 87(2)(b) whom they followed and stopped for a violation they had pre-determined he would commit.

Respondents testified that their conduct was all above board: § 87(2)(b) was walking away from them, and they sought a reason to stop him so they could speak with him about the ShotSpotter alert. Yet, under New York law, Respondents needed only an objective credible reason to approach § 87(2)(b) and ask him questions related to their investigation. They did not need to stop him.

Equally discrediting is the fact that, after Respondents conducted their pretextual stop, they did not ask § 87(2)(b) one question about the ShotSpotter alert. They did not ask him whether he had heard anything. They did not ask him what, if anything, he had seen. Instead, they spent more than twenty minutes amid a time-sensitive ShotSpotter investigation running a warrant check on § 87(2)(b) demanding his identification even though he provided his name, birthdate, and address, and calling other officers to the scene to request a summons book before finally issuing § 87(2)(b) a criminal summons for jaywalking, a violation for which neither Respondent had issued a summons in the year preceding this incident.

The draft decision finds that race played no role in this illogical conduct. To do so, it overlooks contradictory statements from Respondents and credits specious officer accounts that are inconsistent with other evidence, all while misapplying and omitting critical circumstantial evidence fundamental to analyzing claims of racial bias. When applied correctly, there is only one fair and reasonable inference to draw from the totality of the evidence in this case: Respondent Elliott and Respondent Crudele were more likely than not motivated, at least in part, by racial bias when they determined to follow, stop, and summons § 87(2)(b) for jaywalking. The CCRB therefore requests that the findings in the proposed draft decision regarding both specifications be rejected and that Respondents be found guilty of taking law enforcement action based on race.

CONCLUSION

The CCRB respectfully submits that the Court erred in finding Respondent Elliott and Respondent Crudele not guilty of taking law enforcement action motivated, at least in part, by race. As such, the CCRB requests the findings in the proposed draft decision be rejected and that Respondents be found guilty on both charges, and that a penalty of Termination be imposed.

Respectfully submitted,



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Worth, London, and Ma § 87(2)(b)